

itself a *disclaimer* of the *trust*, but it is one circumstance of evidence, and if there be no proof of his ever having acted, the Court after a long lapse of time, as sixty years, will presume a disclaimer (*a*); [and where the trusts of the real and personal estate were combined, being trusts for sale and conversion, and application of the proceeds as a mixed fund in (*inter alia*) paying debts, legacies, and funeral expenses, and the same persons were appointed executors and trustees, and the only executor and trustee who survived the testator renounced probate, the late M.R. held that there was conclusive evidence of a disclaimer, as the trustee, after renouncing execution of the will as to the personal estate, could not carry out the trusts as to the payment of the debts and funeral and testamentary expenses, and could not get rid of a part of his trust in that way, but must have intended to disclaim all the trusts (*b*).]

6. **Executor of an executor.**—If an executor of an executor take upon himself the administration of the goods of the first testator, he thereby accepts the administration of the goods of the latter; for it is only through the medium of the latter testator that he can reach the executorship of the former. It was at one time thought that an executor might renounce probate of the will of the original testator, and at the same time or subsequently prove the will of the immediate testator (*c*), but the practice has now been settled to the contrary (*d*). But if the first executor never proved the will, the chain of representation is not continued (*e*).

7. **Voluntary interference with assets is acceptance of the executorship.**—Any *voluntary interference with the assets*, whether with or without probate, will stamp a person as acting executor. Thus, where of four executors only one

(*a*) *M'Kenna v. Eager*, 9 I. R. C. L. 79; and see *Earl Graaiville v. McNeile*, 7 Hare, 156, cited *post* with remarks.

[(*b*) *Roberts v. Gordon*, 6 Ch. D. 531.]

(*c*) *Shepp. Touch.* by Preston, 464; *Wankford v. Wankford*, Freem. 520;

Hayton v. Wolfe, Cro. Jac. 614; S. C. Palmer, 156; Hutton, 30.

(*d*) In the Goods of Perry, 2 Curt. 655; *Brooke v. Haynes*, 6 L. R. Eq. 25; In the Goods of Delacour, 9 I. R. Eq. 86; In the Goods of Griffin, 2 I. R. Eq. 320; and see In the Goods of Beer, 15 Jur. 160.

(*e*) 21 & 22 Vict. c. 95, s. 16.